

Chapter 9

Instructor's Manual

This chapter covers:

- The protections of Title VII of the Civil Rights Act and how they regulate (or fail to regulate) linguistic discrimination in the workplace.
- An explanation of the legal process that plaintiffs must go through in order to bring a court case against employers who practice accent discrimination
- A description of several court cases involving accent discrimination in the workplace
- A discussion of the ideology behind these court cases

Sample answers to the questions from the text and the website

From the textbook

1. In *Kyomugisha v. Clowney and the University of Wisconsin*, Clowney asked the following question during her deposition: “How about the burden on the other person to go and take courses and study and to be understood as well why should the burden be on the recipient?” How would you characterize Clowney’s position? How do you think someone in her position might fail to see the flaws in her arguments?

Sample answer: Clowney’s position is firmly entrenched in standard language ideology. She states later in her response that she believes it is a dual burden, but she clearly thinks that she has fulfilled her portion of the burden. Her position is interesting because, based on the description of the case in the chapter, Clowney seems to be the first person to have serious misunderstandings with Kyomugisha, which would suggest that Clowney was not actually taking her portion of the communicative burden. I think Clowney can’t see the flaws in her argument, even though she is in charge of combating discrimination on campus, because her hold on standard language ideology is so strong. As a result, she may sincerely believe that she is right and is not discriminating against Kyomugisha.

2. Matsuda talks about positive reactions to accents, which may “charm, surprise, intrigue.” Which accents do you perceive positively? Pick one, and think about what underlies your positive evaluation. Is there any more substance to this positive evaluation than there is to a negative evaluation?

Sample answer: I have a positive reaction to British Received Pronunciation. When I am not thinking critically, I think RP sounds smart, sophisticated classy, and refined. I think my positive reaction is to the people that speak RP, who (at least according to my stereotype) tend to be wealthy, educated, and influential. There is really no good linguistic reason to react positively to accents, just as there is no good linguistic reason to react negatively to an accent—the substance behind any kind of evaluation of this type is based on social judgments of the *speakers* of these accents.

3. *One of Matsud's students once wrote: "What would be the point of being a citizen if non-citizens had equal rights?" How would you answer that question?*

Sample answer: I would answer that the point of citizenship is not to provide a basis for discrimination. The point of citizenship, in my view, is to have a symbolic allegiance to a country you love, want to live in, and want to help improve, rather than serving an exclusionary purpose.

4. *The courts have sometimes disagreed with the claim that accent is immutable. There is generally agreement that skin color is immutable, but language features are not. How do technological advances change our understanding of "immutability?" As it becomes possible to change skin color and gender, does that mean race and sex should no longer be protected?*

Where does religion – another protected category – fit into the question of immutability? See if you can come up with an interpretation that justifies the use of "immutability" in some cases and not others, and decide where language features fit into the bigger picture.

Sample answer: I do not like the court's focus on mutability, because I don't think that people should have to change aspects of their identity in order to be treated fairly. I do not think the court should suggest that people change the mutable parts of themselves in order to be treated with respect and equity. I think the court's job should be to make sure everyone is treated with equity just the way they are.

5. *Of the cases presented in this chapter, which is most reminiscent of the language subordination model? Which is least?*

Sample answer: I think all of these examples are reminiscent of the language subordination model because they demonstrate the costs of not assimilating (or not being able to assimilate) to the standard language variety, namely a negative effect on one's career. In addition, all of these cases demonstrate the sense of entitlement that people who speak valued language varieties often feel—they feel like they shouldn't have to take on much communicative burden because everybody should sound like them. However, all of these cases also differ from the typical language subordination model because in these cases, these individuals refused to accept the standard language ideology that devalues their accents and decided to combat the discrimination they faced rather than try to assimilate. The case *Kyomugisha v. Clowney and the University of Wisconsin* stands out as one of the cases most reminiscent of the language subordination process because of the testimony in which the defendant says that the plaintiff should take more effort to speak the standard language variety, even taking classes to try to assimilate, and should assume more of the communicative burden. The case that strikes me as the least reminiscent of the language subordination process is *Dercach v. Indiana Dept of Highways* because, while the company did discriminate against Dercach for his accent, and therefore all the standard language ideology issues apply, they also had a valid reason to not promote him, so the case was not completely based on accent discrimination like the others.

From the website

Audio

1. Listen to the clips that provide examples of the accents mentioned in Chapter 9. What do you think about these accents being used in the workplace? Do you think there are certain accents that should not be allowed in certain occupations? Why do you feel the way you do?

Sample answer: I think all of these accents are totally fine to use in the workplace. I think for some communication-focused jobs there may be some beginning language learners who aren't at a high enough proficiency level to perform the required duties, but there needs to be some kind of established way to measure this (which of course opens up another host of issues surrounding language assessment!) to determine an employee or applicant's proficiency. A person with an L2 accent who is proficient in English should have the same employment opportunities as any other worker.

Video

"Cheryl Cole Dropped from X Factor US"

BBC News, 26 May, 2011

<http://www.bbc.co.uk/news/entertainment-arts-13561427>

1. What do you think of Cheryl Cole's accent? Do you think it would be difficult for American audiences to understand? She may not have been dismissed from the show because of her accent, but if she was, do you think that it would be the television station's right to terminate her on account of her accent?

Sample answer: I think Cheryl Cole's accent is easy to understand, and I think that U.S. audiences could understand her comments without much effort. I do not think the show has the right to terminate her based on her accent. I understand that the station is competing with other similar shows to capture a fickle audience, which is why there are not many overweight or unattractive people (especially women) on television. However, just because the audience wants something (such as homogenous *SAE) doesn't mean it's right, and exposing an audience to unfamiliar dialects of English on a popular show might be a very good step towards increasing the public's willingness to put out more effort to understand unfamiliar dialects.

Suggested activities and discussion questions

1. Many people have strong reactions against help desk workers who have foreign or U.S. regional accents. Can your students think of any reasons why there is such a reaction to call-in help desk workers in particular? Are there other job positions that people react negatively to when the worker has a foreign accent? Are there any job positions that people react positively to when the worker has a foreign accent? Why do people react the way they do to foreign-accented workers in these jobs? Ask them to evaluate these reasons based on what they have learned in Chapter 9.

2. Find out if any of the students have ever been discriminated against at work because of their accent. If anybody feels this way, ask them to explain the circumstances of the discrimination

and how it made them feel (if they feel comfortable doing so). Ask the class how the examples from their classmates' experiences are or are not reminiscent of the language subordination process.

3. Ask the students to imagine they are starting up their own business and are interviewing several qualified applicants who have foreign accents of varying levels of subtlety. Have them reflect on how they think they would have felt about hiring applicants with foreign accents before taking this class. Have their feelings changed since taking this class? In what ways have they changed or remained the same? Ask them to explore the complexities involved in this issue, including the interplay between the rights and expectations of the employer, the employee, and the customer base.

4. To enhance discussion of this chapter, please visit the companion website and check out the audio and video clips available for use in your classroom.